



3: Relevance and Admissibility of Evidences

Objective -----

By the end of this unit, you should be able to:

1. Identify fact in issue
2. Define what relevancy is in evidence law
3. Explain relevancy, differentiate it from admissibility
4. Discuss the relevancy of facts forming part of the same transaction, motive, preparation, and conduct, similar occurrences
5. Discuss the relevancy of character, and circumstantial evidence, And
6. Identify when the court can use its discretionary power in admitting or prohibiting the admissibility of apiece of evidence



3.1. Facts in issue

- Evidence is all about proof of facts.
- **Because**, unlike laws, the law of evidence does not recognize things in the abstract, including laws.
- **Rather**, it reduce down in to pieces of facts so as to make it ready for proof.
- **And** it is possible to break down the provisions of the substantive law in to a set of propositions **called elements.**



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Q: What is a fact?

- **Fact means any thing or relations of things** capable of being perceived. **Thus**, every thing is a fact.
- A fact may be **internal (psychological facts)** or **physical (external facts)**.
 - A. **Internal fact:** bad faith, reputation, negligence, intention, good faith etc. How can we prove? From **conduct** or **word**.
 - B. **External fact:** some thing: seen or heard, arrangement of things, the sense of a word use and the like.

Facts in issue: the fact, which is disputed **between the parties** and to **be resolved by the help of evidence**.

Q: How can we determine fact in issue? **From the cases.**

See: art. 137& 146 of cr.p.c and art 263, 270 , 138 of civ.p.c.

In civil case, fact in issue is determined in the process of framing of issues at the first hearing. (see Art 246 of civ.p.c)



3.2. Relevant facts

- Evidence must be relevant. But *what does it mean? (what is relevancy?)*
And how can we determine whether a certain evidence is relevant or not ? Is it necessary that the evidence be conclusive of the case?(no)
- Relevant fact means any fact which directly **or** inferentially leads to a conclusions to proof **or** disproof of a fact in issue.
- **Thus**, relevant evidence means evidence having any tendency to make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would be without the evidence
- **Basically**, relevant evidence has two components: **materiality** and **probative value**.



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A. **Materiality**: refers the **relational** aspect of relevancy.

➤ **In other word**, direct or indirect **logical relationship** needs to be established between **the evidence** and **the fact to be proved**.

B. **probative value**:

- This requires **relevant fact** to have the capacity to prove.
- Evidence to be relevant, it must have **a sufficient degree of probative force**.
- The evidence **shall be sufficient** to carry the proponent's burden of **producing evidence**.
- The judge shall reach the **degree of confidence** required by the law that the proposition is true.



3.3. Facts Relevant to Facts in Issue

- Codes nowhere specify what categories of facts are relevant.
- **Accordingly**, how can we distinguish the **relevant fact** from the **irrelevant one**?
- **In nut shell**, the determination of relevancy is based on **logic** and **common sense**. The DER further gives a hint:

A. Facts forming part of the same transaction

Rule 7 of DER state that: Any fact is relevant with a fact in issue as it form part of the same transaction.

- Transaction consists both physical facts and verbal facts (words spoken).

For instance, if A is accused of the murder of B, what facts may be considered as relevant facts?

- I. Whatever was **said or done by A or by B**;
- II. Whatever was said or done by the bystanders at the beating or so shortly before or after.



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B .Facts being the occasion, cause or effect of facts in issue

Rule 8 of DER reads as follows:-

*‘Any fact is relevant which is **the occasion, cause or effect, immediate or otherwise of facts in issue or relevant facts or which constitutes the state of things under which such facts happened or which affords an opportunity for their occurrence or transaction**’.*

- In this rule you will specifically consider: **occasion, cause or effect and state of things**



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(1). Occasion

- **The time, place and condition** of a certain act help us to predict the possibility or impossibility of something.
- If “**time, place and condition**” do not exist together, the possibility of a creation act to take place is **less probable**.
- Occasion inquires in to the existence of **a favorable environment** for the alleged fact to exist or not.
- **For example**, in the case whether A killed B by knife is in issue, the time and place of the commission of a crime are relevant.



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(2). Cause or effect

- When there is logical causal **connection between two facts, back and forth inferences that are inference about the causes from the effect or about the effect from a given cause can be made.**
- **For example,** in the case whether A murdered B is at issues, **marks on the ground produced by the struggle or the blood spots** at the place where the murder was committed **are relevant facts** since they are effects of the crime.



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C. Motive, preparation, and previous and subsequent conduct

(I). **Motive:**

- Motive is **the compelling force** to do a certain act. There can be **no action without a motive**, which must exist for **every voluntary act**.
- **In criminal cases**, where intention is the most important, proof of **motive** is a step forward to the proof of intention.
- ***For example**, in the case where A is tried for the murder of B, the fact that B knew that A had murdered C, and that B had tried to take money from A by threatening to make his knowledge public, are relevant,*



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ii. Preparation:

- Preparation refers to things you do to a result by trying to obtain the means.
- Preparation does not exist in itself unless it is related to a certain purpose.
- If somebody has to prepare, he prepares for something., proofing the fact of preparation is relevant.
- **However,** inference from preparation requires the cumulative evaluations of all related facts.



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iii. Conduct (previous or subsequent) (the actions taken)

- The conduct of a party in relation **to a fact in issue** is relevant whether such conduct is previous or subsequent to the occurrences of the fact in issue,

For example, murder, theft etc.

- The conduct of a party interested in a proceeding at the time, when the facts occurred out of which the proceeding arises is extremely relevant.

For example, in the case whether A robbed B, the fact that, after B was robbed, **C said in A's presence**, the police are coming to look for the man who robbed B, and **immediately afterwards A ran away**, are relevant.



3.4. Relevancy of Confession

- Judicial admission to be acceptable as evidence, the court should have a confidence on the truth of it.
- The accused may voluntarily confess to protect some one or to avoid embarrassment for themselves...
- **Hence**, unless a given confession is true it shall not be relevant evidence. **And**, court may require the prosecution to call evidence.
- This is the case of excluding a confession on the ground of unreliability. (see Art 134(2) of cr.p.c)



3.5. Relevancy of Circumstantial Evidence

- Circumstantial evidence is evidence that proves a **certain fact indirectly**.
- This evidence is depends on **the surrounding circumstances**.
- **Those circumstances are facts**, which should be proved by, evidence and which enables us to make inferences about the existence and non-existence of the alleged or disputed fact.
- **Generally**, we can classify circumstantial evidences in to three:
 1. Prospectant evidence,
 2. Concomitant evidence, and
 3. Retrospectant evidence.



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Prospectant Evidence:

- This is the case when the *former infer the later*, or which is based on *the forwards looking probabilities*.
- **For example**, the judge may have to make conditional prediction of what the plaintiff's income would have been in the period to date had she not been injured.
- **Similarly**, in the case when a thief “A” has cached in the compound where a guard “B” is stabbed to death, the intention of “A” to steal a certain property from the compound is relevant to the issue whether “A” killed the guard or not.



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Concomitant Evidence:

- If the occurrence or not of a certain fact at a **specific time** is in issue, the occurrence of other facts at the same time by the same person are relevant as a **concomitant evidence**.
- **For instance**, if the question is whether “A” committed murder at Gondar in specific minutes of an hour and day or not, the fact that, on the day and minutes of the hour, “A” was at *Bahir dar* is relevant.

Retrospectant Evidence:

- It is the case when the existence of **the later fact rifer the existence of the former** or **which is based on back ward** looking style of reasoning.

Eg. If it is a material issue whether “A” killed the stranger “B” or not ,evidence that “A” was driving at high speed and failed to stop even at red traffic light is relevant since after a killing a person may try to abscond himself in order not to be detected.



3.6. Relevancy of similar Occurrence

- *...Similar to what?* similarity to the fact in issue or disputed fact.
- If the issue to be resolved before the court **is fraud**, similarity refers other previous act of fraud committed by the same person.
- Similar occurrence **shall not** be used to prove **a fact in issue**. **Because**, Evidence of similar occurrence **may produce** an unfair bias, in the sense that it is likely to divert the attention of the court from the fact of the issue before the court to the general character of the accused since character is the cumulative effect of similar behavior of a person.



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Thus, when does evidence of similar occurrence relevant?

- Though evidence of similar occurrences are not relevant to prove a fact in issue, they are relevant to prove whether a person did something **intentionally or accidentally.**
- **If for example,** the defendant is accused of having robbed a bank, then our assessment of how likely it is that he is guilty will almost certainly rise if we learn that he robbed a **bank two years earlier.**
- Most people do not rob banks, and a person who already has robbed a bank is more likely to rob a given bank on another occasion than a person who has never done so.



3.7. Relevancy of Judicial decision

- The relevancy of court judgment depends on the nature of the case.
- Judgments of civil court are not relevant and binding evidence on criminal courts.
- This is due to the reason that the **standard of proof** required for each case, criminal or civil **is different**.
- **In criminal courts**, the standard of proof is the formula of beyond reasonable doubt while in civil cases decision is based on preponderance of evidence.



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- **However,** the relevancy of criminal court judgment depends on Joined suits and non-joined suits.

A. Joined Suits:

Where the accused is convicted, this criminal conviction will have a direct relevancy to determine the civil liability of the accused.

- **However,** where the accused is acquitted, the question of compensation shall not be adjudicated by the then criminal court.
- **Rather,** the court shall inform the injured party that he may file a claim against the accused in civil court having jurisdiction (see **Art 158 of cr.p.c**).



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B. Non-Joined suits:

- The result in criminal court may be either acquittal or conviction.
- If the result in the criminal court was acquittal Art 2149 of civil code specifically provides that the criminal court judgment shall not have abiding effect up on the civil court.
- When the result in the criminal court is conviction, there in no provision which explicitly states as to whether a conviction is or is not binding on civil court.



3.8. Relevancy of Character Evidence

- The word “character” includes both “disposition” and “reputation”.
- **Disposition:** opinion of a particular individual (for instance, friend, work mate or family member)
- **Reputation:** particular community’s opinion or general reputation in a particular community.
- The relevancy of character evidence is different in civil and criminal cases:
 - I. **In civil case**, it is relevant unless when **character itself** is in issue (the nature of the issue itself compels this kind of evidence to be produced). See art 2047 of the civil code.
 - II. **In criminal case**, good character of the accused is always relevant. But what about bad character? **Look art 138+149 of the criminal pr co.**



3.9. Relevant but Inadmissible Facts

- There is the principle of law of evidence that evidence that is not relevant is not admissible.
- Evidence is inadmissible if rejected for some reason other than relevancy.
- **Thus**, admissibility is abroad concept under which rules for exclusion of evidence irrespective of its relevancy.
- **For example**, relevant evidence may be excluded if it is unfairly prejudicial, confusing, or cumulative.
- **Further more**, variety of social policies operates to exclude relevant evidence like in the case of evidence protected by private privilege or public interest immunity.
- **In nut shell**, inadmissible evidence may not be received before a court, no matter what is relevance might be.



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When does Evidences may be Rejected by the Court?

- An evidence may be rejected or not received by court for two reasons:
 - I. **Firstly**, if it is not relevant and
 - II. **Secondly**, if there is a legal prohibition behind it.
- **So**, to be admissible, evidence has to be relevant, without any exclusionary rule preventing admissibility.

Thus, the following sections are allotted to address those issues.



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1. **Public policy.**

- Though, the evidence is relevant, it may be prohibited from being produced as evidence before the court of law.
- One of those situations is the case of public policy.
- There are three relevant evidence which may but be proved in the name of public policy.
- **These are:**
 - I. Evidence as to affairs of state:
 - II. Information for the detection of crime(the **name of the informant**+ the ways of: **gathering information** and **detecting crime**) and
 - III. Disclosure **judicial(the principle of independence of judiciary, art 77 FDRE Constitution)**



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I. **Evidence as to affairs of state:**

- No one shall be permitted to produce **any unpublished official records relating to affairs of state,**
- **Or,** to give any evidence derived there from except **with the permission of the minister of the department concerned.**
- **Here,** the fact that whether the document in question is **public** or **private** is immaterial.
- **Rather,** the question should be, whether such documents can be produced **with out injury to public interest or not.**
- **This includes,** government secrets or public security, military force, and other internal security matters.



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2. Privilege

- Certain relevant evidences are not produced in court of law to protect (1) **certain social interest**, which prevails over the individual interest. **For instance**, spousal privilege.
- **Similarly**, there are privileges provides to protect (2) **professional secrecy** like in the cases of **client- Advocate**, **patient -physician**, and **priest- son relations**.



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3. Parole evidence or extrinsic evidence in relation to document

- It limits proof of the fact to the contents of the writing, and prohibits consideration of **any evidence** which contradicts, alter, vary, change, and modify **any of the terms or provisions of the written agreement**.
- **Art 2006(2) of the civil code** provides for the parole evidence rule for contracts. Here, the article does not provide whether it is possible to challenge the contents of a written contract by other written document. Look **Art 1722 of the civil code**. Again, as per Art 1734 and 1736 of civil code), parties may differ as to the proper or intended meaning of language.
- **Thus**, by way of interpretation...

Q. Dear students, what is best evidence rule? Compare it with parole evidence.